

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 1847

By: Green of the Senate

and

Moore and **Deck** of the House

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11 COMMITTEE SUBSTITUTE

12 An Act relating to Medicaid home- and community-based
13 services; amending 56 O.S. 2021, Section 1017.3,
14 which relates to ADvantage Waiver Program; modifying
15 eligibility criteria; providing certain exception;
16 providing an effective date; and declaring an
17 emergency.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 56 O.S. 2021, Section 1017.3, is
20 amended to read as follows:

21 Section 1017.3. To be eligible for the ADvantage Waiver
22 Program, a person shall:

23 1. Qualify financially for Medicaid;

24 2. Be:

a. sixty-five (65) years of age or older, or

b. nineteen (19) to sixty-four (64) years of age and:

(1) be a physically disabled adult, as determined by the Social Security Administration, ~~age twenty-one (21) years or older without~~

(2) have a developmental disability; provided, the individual does not have an intellectual disability or cognitive impairment related to the developmental disability, or

(3) have a clinically documented, progressive, and degenerative disease that responds to treatment and previously required hospital- or long-term-care-facility level of care to maintain the treatment regimen to prevent health deterioration;

3. Be determined to meet the nursing facility institutional level of care by the ~~Aging Services Division of the~~ Department of Human Services;

4. Reside in his or her own home ~~or~~, a family member's home, or an assisted living center contracted with the Department of Human Services under the ADvantage Waiver Program; and

5. Have needs that can be safely met with waiver services and family or community supports.

SECTION 2. This act shall become effective July 1, 2026.

1 SECTION 3. It being immediately necessary for the preservation
2 of the public peace, health or safety, an emergency is hereby
3 declared to exist, by reason whereof this act shall take effect and
4 be in full force from and after its passage and approval.

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6 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
7 04/08/2026 - DO PASS, As Amended and Coauthored.

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